

March 21, 2007



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 11329
(ELEVENTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of the materials described in paragraph 6 below in specially designed packages, by private motor vehicles without placards. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.500, 172.504 and 172.506, except as specified herein.
5. BASIS: This special permit is based on the application of Degesch America, Inc. dated July 25, 2005, submitted in accordance with § 107.109.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name Hazardous Materials Description --	Hazard Class/ Division	Identi- fication Number	Packing Group
Aluminum phosphide	4.3	UN1397	I
Aluminum phosphide pesticides	6.1	UN3048	I
Magnesium phosphide	4.3	UN2011	I

7. SAFETY CONTROL MEASURES:

- a. PACKAGING - The following packages are authorized under this special permit:

Combination packages consisting of:

i. Inner aluminum canisters with a capacity of 1.5 kg or less further packed in an outer 4G box. The completed box may not contain over 21 kg of hazardous material; or

ii. Inner aluminum canisters or sealed foil pouches with a capacity of 1.5 kg or less further packed in an outer packaging consisting of a UN1A2 drum, UN4A steel box, or UN4B aluminum box. No unsealed foil pouches may be transported. The completed outer packaging (which may contain a combination of canisters and pouches) may not contain over 21 kg of hazardous material.

- b. OPERATIONAL CONTROLS -

(1) No more than 21 kilograms of aluminum phosphide or magnesium phosphide or combination thereof may be transported on a single motor vehicle at a time.

(2) The completed packages must be stowed in metal boxes or compartments on the motor vehicle.

(3) Only distributors of the special permit holders and licensed pest control operators may transport the packages covered under the terms of this special permit.

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(4) Only private motor vehicles used in pest control operations are authorized to transport the packages described in this special permit.

(5) Each canister and foil pouch and outer packaging must be labeled POISON and DANGEROUS WHEN WET; however, vehicles need not display DANGEROUS WHEN WET placards. Miniature labels (3/4" x 3/4") are authorized for inner canisters or foil pouches.

8. SPECIAL PROVISIONS:

a. The outside of each package must be marked "DOT-SP 11329".

b. Drivers must have been instructed as to necessary safeguards and proper procedures in the event of unusual delay, fire or accident.

c. The use of exceptions for materials of trade under § 173.6 is prohibited under the terms and conditions of this special permit.

d. Packagings permanently marked 'DOT-E 11329', prior to October 1, 2007 may continue to be used under this special permit for the remaining service life of the packaging or until the special permit is no longer valid. Packagings marked on or after October 1, 2007 must be marked 'DOT-SP 11329'.

e. Shipping papers displaying 'DOT-E 11329' may continue to be used until October 1, 2007, provided the special permit remains valid.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

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- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8 who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Bob Richard
Deputy Associate Administrator
for Hazardous Materials Safety

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at

http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm

Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: sln